

Court No. - 21

Case :- WRIT - C No. - 10127 of 2023

Petitioner :- Smt. Indrawati

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Patel, Dhirendra Kumar Pal

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.

List as fresh on 31.03.2023, showing the name of Sri Baleshwar Chaturvedi as counsel for the respondent-Electricity Department.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.3.2023

Shivangi

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Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Umesh Chandra Sharma,J.

The petitioner has challenged the notice dated 10.2.2023 issued by the respondent-Electricity Department for recovery of a sum of Rs.1,63,353/- from the petitioner in a case of theft of electricity.

The specific case of the petitioner is that his objection dated 7.11.2022 sent to the Executive Engineer by registered post on the same day, has not been considered while passing the order of final assessment.

Sri Baleshwar Chaturvedi, learned counsel for the respondent-Electricity Department concedes that the order of final assessment does not advert to the objection filed by the petitioner. Infact it mentions that no objection had been filed by the petitioner. He states that the respondent will pass a fresh order after considering the objection of the petitioner.

Accordingly, the final assessment order is hereby quashed as well as the consequent demand notice and it is left open to the respondent to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of.

Order Date :- 31.3.2023

skv

(Umesh Chandra Sharma, J.)

(Manoj Kumar Gupta, J.)